

CHAPTER 22

An Act to constitute the Minister of Health the sanctioning authority for all the purposes of Part VII of the London Government Act, 1939. [28th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of
definition of
"sanctioning
authority".

2 & 3 Geo. 6.
c. 40.

1.—(1) The consent required by subsection (1) of section one hundred and twenty-four of the London Government Act, 1939, for the borrowing of money by the council of a metropolitan borough shall in all cases be the consent of the Minister of Health; and accordingly for the definition of "sanctioning authority" in section one hundred and forty-five of that Act there shall be substituted the following definition:

"Sanctioning authority" means the Minister.

(2) Subsection (2) of the said section one hundred and twenty-four (which provides for appeals to the Minister of Health against the refusal or withholding by the London County Council of sanction to the borrowing of money by a metropolitan borough council) is hereby repealed.

Short title,
citation and
commence-
ment.

2.—(1) This Act may be cited as the London Government Act, 1950, and the London Government Act, 1939, and this Act may be cited together as the London Government Acts, 1939 and 1950.

(2) This Act shall come into operation on the first day of October, nineteen hundred and fifty.

CHAPTER 23

Coal-Mining (Subsidence) Act, 1950

ARRANGEMENT OF SECTIONS

Section

1. Duty of National Coal Board to carry out repairs and make payments in respect of subsidence damage to dwelling-houses.
2. Nature of obligations of National Coal Board.
3. Payments in respect of buildings comprising dwelling-houses.
4. Provisions as to determination of amount of depreciation and recipients of payments.
5. Notice of subsidence damage and repairs to be given to National Coal Board.
6. Powers of National Coal Board in cases where further damage is likely.

Section

7. Further provisions when damage continues over a period.
8. Powers of National Coal Board to execute preventive works.
9. Powers of entry of National Coal Board.
10. False information.
11. Grants to National Coal Board.
12. Determination of questions.
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14. Rights conferred by Act to be alternative to other rights.
15. Contributions towards expenses of claim.
16. Regulations.
17. Interpretation.
18. Short title and extent.

SCHEDULE—Determination of amount of depreciation and recipients of payments.

An Act to provide for the carrying out of repairs and the making of payments in respect of damage affecting certain dwelling-houses and caused by subsidence resulting from the working and getting of coal and other minerals worked with coal, and for the execution of works to prevent or reduce such damage; and for purposes connected with the matters aforesaid.

[28th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The National Coal Board shall carry out such repairs and make such payments as are required under the following provisions of this Act, in respect of subsidence damage occurring on or after the first day of January, nineteen hundred and forty-seven, being subsidence damage occurring to or affecting any dwelling-house which at the time of the occurrence of the damage was a dwelling-house to which this Act applies.

Duty of National Coal Board to carry out repairs and make payments in respect of subsidence damage to dwelling-houses.

(2) This Act applies to—

- (a) a hereditament which is used wholly or mainly for the purposes of a private dwelling and has a rateable value not exceeding thirty-two pounds; and
- (b) any such separately occupied part of a hereditament as is used wholly or mainly for the purposes of a private dwelling, if the hereditament has a rateable value which, when divided by the number of parts of the hereditament which are separately occupied, does not exceed thirty-two pounds; and

- (c) such part of a hereditament, being a hereditament which is used partly (but not wholly or mainly) for the purposes of a private dwelling and has a rateable value not exceeding thirty-two pounds, as is used for the purposes of the private dwelling;

and references in this Act to a dwelling-house to which this Act applies shall be construed as references to such a hereditament as is specified in paragraph (a) of this subsection and to such part of a hereditament as is specified in paragraph (b) or paragraph (c) of this subsection:

Provided that, if it appears to the Minister of Fuel and Power that, having regard to any changes in the valuation of hereditaments for rating purposes, the aforesaid figure of thirty-two pounds ought to be altered, he may by order, made with the approval of the Treasury, amend this subsection by substituting for that figure such higher or lower figure as may be specified in the order.

An order under this subsection may be varied or revoked by a subsequent order made thereunder and the power to make orders under this subsection shall be exercisable by statutory instrument and no such order shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

(3) For the purposes of the last preceding subsection, a hereditament or part of a hereditament shall not be deemed to have ceased to be used for the purposes of a private dwelling by reason only that it is temporarily unoccupied, or has been rendered unfit for occupation by subsidence damage and is for that reason unoccupied, or is used otherwise than for the purposes of a private dwelling while in the occupation of any authority by virtue of any powers of requisitioning exercisable by that authority under any enactment.

(4) In the application of this section to Scotland—

- (a) for the words “ thirty-two pounds ”, wherever they occur, there shall be substituted the words “ fifty-two pounds ”;
- (b) in subsection (2) there shall be added at the end of paragraph (c) the following:—

“ and

- (d) in Scotland, any part (whether separately occupied or not) of a hereditament entered in the valuation roll as agricultural lands and heritages within the

meaning of the Rating and Valuation (Apportionment) Act, 1928, being a part which is occupied wholly or mainly as a private dwelling and which would if separately valued have a rateable value not exceeding fifty-two pounds”;

- (c) in the said subsection after the words “ paragraph (c) ” there shall be added the words “ or paragraph (d) ”; and
- (d) any question arising under this section as to what would be the rateable value of any such part of a hereditament as is mentioned in paragraph (d) of subsection (2) of this section if it were separately valued shall be determined by the assessor appointed to act for the purposes of the Lands Valuation (Scotland) Act, 1854, and the Acts amending that Act in the county or burgh in which the said part is situated, and his decision shall be final.

2.—(1) Subject to the provisions of this Act, where any subsidence damage occurred or occurs on or after the first day of January, nineteen hundred and forty-seven, to any dwelling-house to which this Act applies, the National Coal Board shall either carry out as soon as possible such reasonable repairs to the dwelling-house as are required in consequence of the damage thereto or, if the Board think fit, make a payment equal to the cost reasonably incurred by any other person in carrying out such repairs.

Nature of
obligations
of National
Coal Board.

(2) Where any reasonable repairs required in consequence of such subsidence damage as aforesaid have been carried out before the passing of this Act, the preceding subsection shall not apply to those repairs, but the National Coal Board shall, subject to the provisions of this Act, make a payment equal to the amount (if any), by which the cost reasonably incurred in carrying out those repairs exceeds five pounds.

(3) If the reasonable cost of carrying out such reasonable repairs to the dwelling-house as are required in consequence of the subsidence damage thereto exceeds or would exceed the amount of the depreciation in the value of the dwelling-house caused by the damage, the National Coal Board may, after consultation with the local authority for the area in which the dwelling-house is situated, in lieu of carrying out repairs or making any payment under the preceding provisions of this section, make a payment equal to the amount of the said depreciation.

Where a payment equal to the amount of depreciation is made under this subsection, the local authority shall not require the execution of any such works of repair to the dwelling-house as may be required in consequence of the subsidence damage thereto.

(4) Notwithstanding anything in the preceding provisions of this section, the National Coal Board shall, if works urgently required in consequence of the subsidence damage or works reasonably required for temporarily meeting the circumstances created by that damage have been executed after the passing of this Act by any other person, make a payment equal to the cost reasonably incurred in executing those works.

Payments
in respect
of buildings
comprising
dwelling-
houses.

3.—(1) Where—

- (a) a building comprises one or more dwelling-houses to which this Act applies and subsidence damage occurred or occurs on or after the first day of January, nineteen hundred and forty-seven, to a part of the building which is not comprised in such a dwelling-house; and
- (b) the damage to that part of the building also affects any such dwelling-house or dwelling-houses comprised in the building;

then, subject to the provisions of this Act and to any agreement between the National Coal Board and the owner of the building and any other interested party, the reasonable cost of carrying out such reasonable repairs to that part of the building as are required in consequence of the damage thereto shall be apportioned as between the said dwelling-house or dwelling-houses affected by the said damage and the other parts of the building so affected, in such manner as may be appropriate having regard to the extent and effect of the damage and all the circumstances of the case; and, if such repairs have been carried out to the said part by any person other than the National Coal Board, the Board shall pay an amount equal to such part of the said cost as is apportioned to the dwelling-house or dwelling-houses.

(2) Where—

- (a) a dwelling-house to which this Act applies is part only of a building and subsidence damage occurred or occurs to the building on or after the first day of January, nineteen hundred and forty-seven, and the damage affects the dwelling-house; and
- (b) the cost of carrying out such reasonable repairs to the building as are required in consequence of the damage thereto exceeds or would exceed the amount of the depreciation in the value of the building caused by the damage;

subsection (3) of the last preceding section shall not apply, but the National Coal Board may, in lieu of carrying out repairs to the dwelling-house or making a payment under subsection (1) or subsection (2) of the last preceding section and in lieu of making

any payment under the preceding subsection, make a payment equal to such part of the said depreciation in the value of the building as is apportioned to the dwelling-house.

For the purposes of this subsection, the amount of the said depreciation apportioned to the dwelling-house shall be such amount as bears to the total depreciation the same proportion as the annual value of the dwelling-house in the state in which it was immediately before the occurrence of the damage bears to the annual value of the building in the state in which it then was.

(3) In the application of the last preceding subsection to Scotland, for the words "annual value of the dwelling-house" there shall be substituted the words "gross annual value of the dwelling-house", and for the words "annual value of the building" there shall be substituted the words "aggregate gross annual value of the hereditaments comprised in the building".

4. The provisions of the Schedule to this Act shall have effect for the purpose of determining the amount of the depreciation in the value of a dwelling-house or building caused by subsidence damage, and the persons who are to receive the payments made under the two last preceding sections.

Provisions as to
determination
of amount of
depreciation
and recipients
of payments.

5.—(1) The National Coal Board shall not be required to carry out any repairs or to make any payment under this Act in respect of any subsidence damage to any dwelling-house to which this Act applies or any such part of a building as is mentioned in subsection (1) of section three of this Act, unless the owner of the dwelling-house or part of the building or any other person who is liable to make good the subsidence damage in whole or in part has given notice in writing to the Board of the occurrence of the damage in such manner, within such time, and containing such particulars, as may be prescribed, and has given to the Board reasonable facilities to inspect the premises, so far as he was in a position to give such facilities.

Notice of
subsidence
damage and
repairs to
be given to
National
Coal Board.

(2) The National Coal Board shall not be required to make any payment under this Act in respect of any repairs which have been carried out by any other person to any such dwelling-house or any such part of a building as aforesaid after the passing of this Act, unless that person has given to the Board, not less than fourteen days before the repairs were commenced, notice in writing containing adequate particulars of the proposed repairs, and has given to the Board reasonable facilities to inspect the premises, so far as he was in a position to give such facilities:

Provided that this subsection shall not apply to any works urgently required in consequence of the subsidence damage or any works reasonably required for temporarily meeting the circumstances created by that damage.

Regulations made under section sixteen of this Act may prescribe the manner in which notice is to be given under this subsection, and the particulars to be contained in any such notice.

Powers of
National Coal
Board in cases
where further
damage is
likely.

6.—(1) Where subsidence damage has occurred on or after the first day of January, nineteen hundred and forty-seven, to any dwelling-house to which this Act applies or any building comprising such a dwelling-house, and it appears probable to the National Coal Board that further subsidence damage will occur to that dwelling-house or building within such period as would make it unreasonable that repairs, other than the works herein-after mentioned, should be carried out to that dwelling-house or building, they may give notice in writing to the owner of the dwelling-house or building to the following effect—

- (a) if the notice relates to a dwelling-house, that the Board will not carry out any repairs to the dwelling-house while the notice is in force, other than works urgently required in consequence of the subsidence damage or works reasonably required for temporarily meeting the circumstances created by that damage, or make any payment in respect of repairs carried out to the dwelling-house while the notice is in force, other than such works as aforesaid;
- (b) if the notice relates to any such building as aforesaid, that the Board will not make any payment in respect of repairs carried out thereto while the notice is in force, other than such works as aforesaid;

and the obligations of the Board under the preceding provisions of this Act shall be subject to the terms of the notice.

(2) It shall be the duty of the National Coal Board, as soon as permanent repairs to the dwelling-house or building can properly be carried out, to revoke any notice given by them under this section, and any person aggrieved by a failure of the Board to revoke the notice may apply to a county court and, if it appears to the county court in all the circumstances to be reasonable to do so, it may by order revoke the notice.

(3) A notice under this section may be served by post in a registered letter.

(4) In the application of this section to Scotland, for the words "a county court" and the words "the county court" there shall be substituted the words "the sheriff".

Further
provisions
when damage
continues
over a period.

7.—(1) Where subsidence damage (in this section referred to as "the original damage") has occurred or occurs on or after the first day of January, nineteen hundred and forty-seven, to a dwelling-house to which this Act applies or to any building

comprising such a dwelling-house, being damage in respect of which notice is given in accordance with subsection (1) of section five of this Act, and further subsidence damage has occurred or occurs to that dwelling-house or building before the end of the period mentioned in the next following subsection, the original damage and any further such damage shall be treated as one, and accordingly—

- (a) references in this Act to the time immediately before or immediately after the occurrence of the damage shall be construed as references to the time immediately before the occurrence of the original damage and the time immediately after the end of the said period respectively;
- (b) the notice given in respect of the original damage shall have effect also in respect of any such further damage occurring before the end of the said period.

(2) The period referred to in the preceding subsection is the period beginning with the occurrence of the original damage and ending—

- (a) if, before the completion of the permanent repairs to the dwelling-house or building which are required in consequence of the subsidence damage, it is finally determined (by agreement or otherwise) that a payment falls to be made under subsection (3) of section two or subsection (2) of section three of this Act, on the date on which it is so determined; and
- (b) in any other case, on the date on which the said permanent repairs to the dwelling-house or building, as the case may be, are completed.

8.—(1) Where it appears to the National Coal Board that subsidence damage is likely to occur to any dwelling-house to which this Act applies, or is likely to occur to any building comprising such a dwelling-house, and, if it occurs, to affect the dwelling-house, and that the execution of works in that dwelling-house or building would prevent the occurrence, or reduce the extent, of such damage, they may, with the consent of the owner of the dwelling-house or building, execute those works, and, if that consent is unreasonably withheld and subsidence damage subsequently occurs to the dwelling-house or building, then—

Powers of
National
Coal Board
to execute
preventive
works.

- (a) if the damage could, but for the withholding of consent, have been prevented by the execution of the works, the Board shall not be required to carry out any repairs or make any payments under this Act in respect of that damage;
- (b) if the extent of the damage could, but for the withholding of consent, have been reduced by the execution of the

works, the Board shall not be required to carry out any repairs under this Act in respect of that damage and the amount of any payment which the Board would but for this provision have been required or authorised to make under this Act in respect of the damage shall be reduced to a corresponding extent:

Provided that, where parts of a building which comprises such a dwelling-house are in different ownership, this subsection shall not affect the carrying out of repairs to, or the making of any payment in respect of, any part of the building whose owner has not withheld, or has not unreasonably withheld, his consent under this subsection.

(2) If any person other than the owner of the dwelling-house or building is liable to make good any subsidence damage occurring to the dwelling-house or building, the reference in the preceding subsection to the owner shall be construed as a reference to the person so liable, and if there are two or more persons so liable (whether the owner is included among them or not), the said reference shall be construed as a reference to all those persons.

(3) Where two or more persons are liable as aforesaid, and it appears to a county court, on an application made by any of those persons or the National Coal Board, that any of those persons has unreasonably withheld consent to the execution of such works as aforesaid, the court may give such consent on behalf of that person.

(4) In the application of this section to Scotland, for the words "a county court" and the words "the court" there shall be substituted the words "the sheriff".

Powers of
entry of
National
Coal Board.

9.—(1) Where any dwelling-house to which this Act applies or any such part of a building as is mentioned in subsection (1) of section three of this Act is occupied under a lease or tenancy, other than a ground lease, and the landlord has, for the purpose of carrying out repairs to the dwelling-house or part of the building, any rights to enter, inspect and execute works in the dwelling-house or part of the building, the National Coal Board shall have the like rights for the purpose of carrying out repairs or executing works in the dwelling-house or part of the building which they are required or authorised to carry out or execute under any provisions of this Act.

(2) If, on a complaint made by the National Coal Board, it appears to a court of summary jurisdiction that the occupier of any such dwelling-house or part of a building has prevented the Board from exercising the powers conferred by the preceding subsection, the court may order the occupier to permit the exercise of those powers.

(3) Where any such dwelling-house or part of a building is occupied under a lease or tenancy, other than a ground lease, but subsection (1) of this section does not operate to confer powers on the National Coal Board to enter, inspect and execute works therein, a court of summary jurisdiction may, on a complaint made by the Board, confer such powers on the Board and order the occupier to permit the exercise thereof.

(4) In the application of this section to Scotland, for the words "a court of summary jurisdiction" and the words "the court" there shall be substituted the words "the sheriff".

10. If any person, for the purpose of obtaining for himself or any other person any benefit under this Act— False information.

(a) furnishes any information which he knows to be false in a material particular, or recklessly furnishes any information which is false in a material particular; or

(b) with intent to deceive withholds any material information, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

11. The Minister of Fuel and Power may, with the approval of the Treasury, make to the National Coal Board out of moneys provided by Parliament— Grants to National Coal Board.

(a) in respect of the period beginning with the passing of this Act and ending with the thirty-first day of December, nineteen hundred and fifty-two, grants not exceeding the amount estimated by him to be one half of the amount of the additional expenditure incurred in that period by the National Coal Board by virtue of this Act, or one million five hundred thousand pounds, whichever is the less;

(b) in respect of any subsequent calendar year, grants not exceeding the amount estimated by him to be one half of the additional expenditure so incurred in that year, or two hundred and fifty thousand pounds, whichever is the less.

12.—(1) Without prejudice to the jurisdiction of any other court, a county court or, in Scotland, the sheriff shall have jurisdiction to hear and determine any matter arising under this Act, and may make such orders as may be necessary to give effect to its or his determinations and in particular may by order— Determination of questions.

(a) require the National Coal Board to carry out their obligations under this Act within such period as the court or sheriff may direct;

(b) award damages in respect of any failure of the National Coal Board to carry out their said obligations within a reasonable time.

(2) If proceedings with respect to any matter arising under this Act are brought before a county court, the powers of a county court judge of summoning one assessor under subsection (1) of section eighty-eight of the County Courts Act, 1934, may be exercised notwithstanding that no application is made in that behalf by any party to the proceedings.

(3) In proceedings with respect to any matter arising under this Act brought before any court in Scotland the court may, if it thinks fit, summon to its assistance at the proof or at any subsequent hearing, whether on reclaiming motion, appeal, or otherwise, a specially qualified assessor.

(4) Where an assessor is summoned by a judge in any proceedings by virtue of subsection (2) of this section—

(a) he may, if so directed by the judge, inspect the premises to which the proceedings relate without the judge, and report to the judge in writing thereon; and

(b) the judge may on consideration of the report and any observations of the parties thereon, give such judgment or make such order in the proceedings as may be just.

(5) In the application of the last preceding subsection to Scotland, for the words “subsection (2)” there shall be substituted the words “subsection (3)” and for the words “a judge” and the words “the judge”, wherever they occur, there shall be substituted the words “the court”.

(6) The remuneration of an assessor summoned as aforesaid shall be defrayed out of moneys provided by Parliament.

(7) Where in proceedings under this Act the sheriff makes a remit by virtue of rule sixty in the First Schedule to the Sheriff Courts (Scotland) Act, 1907, the expense attending the execution of such a remit shall, notwithstanding anything contained in the said rule, be defrayed out of moneys provided by Parliament.

Onus of proof as to cause of damage.

13. Where, in any proceedings under this Act, the question arises whether any structural damage to a dwelling-house to which this Act applies or to any such part of a building as is mentioned in subsection (1) of section three of this Act is subsidence damage, and it is shown that the nature of the damage and the circumstances are such as to indicate that the damage may be subsidence damage, the onus shall be on the National Coal Board to show that the damage is not subsidence damage.

Rights conferred by Act to be alternative to other rights.

14.—(1) Where any person is entitled, under the preceding provisions of this Act, to require the National Coal Board to carry out any repairs or make any payment in respect of subsidence

damage, and also has any right, apart from this Act, to claim damages or compensation from the National Coal Board in respect of that damage, he may elect whether to exercise the right conferred by this Act or the other right aforesaid, and shall be bound by his election accordingly, and, if he gives a notice under subsection (1) of section five of this Act in respect of the damage, he shall be deemed to have elected to exercise the right conferred by this Act.

(2) If the National Coal Board were under an obligation before the passing of this Act to make any payment of damages or compensation in respect of subsidence damage (other than a payment calculated by reference to the weight or area of the coal or other mineral the working of which had caused the subsidence) or to make good such damage, and before the passing of this Act made a payment or executed works in full satisfaction of that obligation, nothing in this Act shall confer on any person any right against the National Coal Board in respect of that damage.

(3) Where the National Coal Board have made before the passing of this Act, otherwise than in full satisfaction of such an obligation as aforesaid, any payment in respect of subsidence damage, then, if the person who received the payment or his successor in title would, but for this subsection, have a right to require the National Coal Board to carry out repairs or make any payment under this Act in respect of that damage, he shall not be entitled to exercise that right unless he refunds or brings into account the payment so received.

15. The National Coal Board may make such payments as Contributions may be prescribed by way of reimbursement of the expenses towards incurred by any person for the purpose of securing the carrying expenses of out of their obligations by the Board. claim.

16. The Minister of Fuel and Power may make regulations Regulations. prescribing anything required by this Act to be prescribed, and that power shall be exercised by statutory instrument, and any such statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

17.—(1) In this Act the following expressions have the mean- Interpretation. ings hereby respectively assigned to them, that is to say:—

“annual value”, in relation to a dwelling-house or building, means the rent at which the dwelling-house or building might reasonably be expected to let from year to year if the tenant undertook to pay all usual tenant's rates and the landlord undertook to bear the cost of the repairs and insurance, and the other expenses, if any, necessary to maintain the dwelling-house or building in a state to command that rent;

“gross annual value” has the same meaning as in the Rating (Scotland) Act, 1926;

“ground lease” means a lease at a rent (or where the rent varies, at a maximum rent) which does not substantially exceed the rent which a tenant might reasonably have been expected, at the commencement of the term created by the lease, to pay for the land comprised in the lease, excluding any buildings, for a term equal to the term created by the lease;

“hereditament” means—

(a) in England and Wales, a hereditament which is separately valued for rating purposes;

(b) in Scotland, lands and heritages within the meaning of the Lands Valuation (Scotland) Act, 1854, which are separately valued for rating purposes;

“local authority” means—

(a) in England and Wales, the local authority for the purposes of Part II of the Housing Act, 1936;

(b) in Scotland, the local authority for the purposes of the Housing (Scotland) Acts, 1925 to 1949;

“owner”, in relation to any premises—

(a) if the premises are held on a ground lease, means the lessee under that lease;

(b) in any other case in England and Wales, means the owner of the fee simple;

(c) in any other case in Scotland, means, if the property is feudal property, the proprietor of the dominium utile, or, if the property is not feudal property, the owner of the property;

“prescribed” means prescribed by regulations made under section sixteen of this Act;

“rateable value”, in relation to any hereditament, means the value shown in the valuation list, or, in Scotland, the valuation roll, for the time being in force as the rateable value of that hereditament or, if the rateable value differs from the net annual value of the hereditament, as the net annual value thereof;

“structural damage” means damage to any building or structure, or any sewers or drains, or any pipes, wires or other fixed apparatus installed for the purpose of supplying gas, electricity, water, heating or telephone services;

“subsidence damage” means structural damage caused by the withdrawal of support from land as the result of the

working and getting of coal or any other mineral which is worked with coal, but does not include damage caused as the result of the working and getting of coal and other minerals, if the working and getting of the coal is ancillary to the working of those other minerals.

(2) For the purposes of this Act subsidence damage shall be deemed to occur or to have occurred at the time when evidence of the damage first appears or appeared.

(3) For the purposes of this Act, a semi-detached house or a house forming part of a terrace or row of attached houses shall be deemed to be a separate building and not to form part of a building.

(4) For the purposes of this Act, any garage, outhouse, fence, or other structure situated within the curtilage of and appurtenant to another building, and any sewer, drain, pipe, wire or other fixed apparatus situated within the curtilage and installed for the purposes of a building, shall be deemed to be part of that building.

(5) In construing any reference in this Act to the state in which a dwelling-house or building was immediately after the occurrence of subsidence damage, any damage which is not structural damage caused by the subsidence shall be deemed not to have occurred.

18.—(1) This Act may be cited as the Coal-Mining (Subsidence) Act, 1950. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

SCHEDULE

Section 4.

DETERMINATION OF AMOUNT OF DEPRECIATION AND RECIPIENTS OF PAYMENTS

1. For the purposes of this Act the amount of the depreciation caused by subsidence damage in the value of a dwelling-house or building shall be the amount by which the value of the dwelling-house or building in the state in which it was immediately after the occurrence of the damage is less than the value in the state in which it was immediately before the occurrence of the damage, and the value thereof in either of the said states shall be the amount which it might have been expected to realise in that state on such a sale as is specified in paragraph 3 of this Schedule effected immediately after the subsidence damage occurred.

2. In calculating under the preceding paragraph the value of a dwelling-house or building in the state in which it was immediately after the occurrence of subsidence damage, any increase in that value due to any right arising under this Act in respect of that damage shall be disregarded.

3. The sale referred to in the preceding provisions of this Schedule shall be a sale of the fee simple in the open market and with vacant possession and free from incumbrances but subject to any easement or other restriction affecting the land at the relevant time.

4. A payment under subsection (1), subsection (2) or subsection (4) of section two or under subsection (1) of section three of this Act shall be made to the person by whom the cost of carrying out the repairs in question is incurred, or, if the cost is incurred partly by one person and partly by another, the payment shall be apportioned between them in such manner as may be determined by agreement or, in default of agreement, shall be apportioned between them in shares corresponding with their respective shares in the cost.

5. Subject to the next following paragraph, a payment under subsection (3) of section two or under subsection (2) of section three of this Act shall be made to the person who is for the time being the owner of the dwelling-house or building:

Provided that—

- (a) if any other person is liable to make good the whole of the subsidence damage to which the payment relates, the said payment shall be made to him;
- (b) if any other person is liable to make good any part of the damage, such part of the said payment shall be made to him as bears to the whole of that payment the same proportion as the cost of meeting that liability bears to the cost of making good the whole of the damage; and
- (c) if or in so far as any payment under subsection (3) of section two of this Act is in lieu of a payment under subsection (2) of that section, the payment shall be made in accordance with the last preceding paragraph.

6. Where the National Coal Board are satisfied that the interest in the dwelling-house or building of any person entitled to receive a payment under the last preceding paragraph or part of such a payment is, at the time when the payment falls to be made, subject to a mortgage, the payment or part thereof shall be made to the mortgagee, and the mortgagee shall be liable to account therefor as if the payment or part thereof had been proceeds of sale of the said interest arising under a power of sale exercised by the mortgagee at the said time, except that the mortgagee shall not be entitled to credit for any costs incurred by him in connection with the claiming, ascertainment, apportionment or making of the payment:

Provided that—

- (a) if at the time when the payment is made the debt secured by the mortgage (other than any part thereof representing costs for which the mortgagee would not be entitled to credit) has been paid in full, the payment shall be disposed of as if the said interest had not been subject to that mortgage;

- (b) if the said interest was subject to two or more successive mortgages, this paragraph shall have effect with the substitution for references to the mortgagee of references to the first mortgagee, or, if the preceding sub-paragraph has effect in relation to the first mortgage, to the second mortgagee, and so on; and
- (c) in any case this paragraph shall have effect, as regards any mortgage, subject to any agreement between the mortgagee and the person who apart from that mortgage would have been entitled to receive the payment or part thereof.

7. In the application of this Schedule to Scotland, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“fee simple” means, in the case of feudal property, the estate or interest of the proprietor of the dominium utile, or, in the case of property other than feudal property, the estate or interest of the owner;

“incumbrances” means any ground annual or other incumbrance or any liability to pay feuduty;

“easement” means servitude;

“mortgage” means—

(a) a heritable security within the meaning of the Conveyancing (Scotland) Act, 1924, exclusive of a security by way of ground annual and a real burden *ad factum praestandum* but inclusive of a security constituted by *ex facie* absolute disposition; or

(b) an assignation in security of a lease recorded under the Registration of Leases (Scotland) Act, 1857;

and “mortgagee” shall be construed accordingly.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Valuation (Scotland) Act, 1854	17 & 18 Vict. c. 91.
Registration of Leases (Scotland) Act, 1857	20 & 21 Vict. c. 26.
Sheriff Courts (Scotland) Act, 1907	7 Edw. 7. c. 51.
Conveyancing (Scotland) Act, 1924	14 & 15 Geo. 5, c. 27.
Rating (Scotland) Act, 1926	16 & 17 Geo. 5. c. 47.
Rating and Valuation (Apportionment) Act, 1928	18 & 19 Geo. 5. c. 44.
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.
Housing Act, 1936	25 Geo. 5 & 1 Edw. 8. c. 51.